

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503768	ONESOURCE DISTRIBUTORS, LLC VS INDIO PACIFIC ASSOCIATES, A CALIFORNIA LIMITED PARTNERSHIP	MOTION TO SET ASIDE ENTRY OF DEFAULT

Tentative Ruling: The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) If the party in default moves promptly for relief and no prejudice to the opposing party will result from setting aside the default, only “very slight evidence will be required to justify a court in setting aside the default” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [quoting *Berri v. Rogero* (1914) 168 Cal. 736, 740].)

Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.) The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (*Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078.)

Cross-Defendant Power4Ward, LLC was served via Registered Agent CorpNet, Inc-Juan Chavez, according to the proof of service filed with the court on 11.04.25. This service was done via personal service of Mr. Chavez on October 29, 2025. The Request for Entry of Default was granted by the court clerk on December 4, 2025, with mailing of notice of default on that same date. The motion to set aside entry of default was filed on June 9, 2026, past the 180 day deadline imposed by CCP 473.5 and six month deadline imposed by CCP 473(b). Additionally, Cross-Defendant Power4Ward in their motion does not challenge the validity of service upon the Registered Agent but places the blame on said agent for failing to forward the summons and cross-complaint to their current address. However, as pointed out by Cross-Complainants’ Opposition, Power4Ward, LLC attempted to file an answer with the court on December 8, 2025 that was rejected on December 9, 2025 as they were already defaulted.

Power4Ward fails to show lack of actual notice, considering no challenge to service of process, as well as their attempt to file an answer shortly after default was entered. This conduct also does not qualify as mistake, inadvertence, surprise or excusable neglect. Therefore, relief under CCP 473(b) and CCP 473.5 is not warranted. Relief under CCP 473(d) is inapplicable as this is not a situation where the default is void.

Power4Ward, LLC's Motion to Set Aside Entry of Default DENIED.

OSC re default judgment confirmed for October 29, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509590	ZONES VS BOSTON SCIENTIFIC CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT OF CHARLES ZONES

Tentative Ruling: No tentative ruling. Demurrer to be vacated or continued based upon Defendants Boston Scientific Corporation and Boston Scientific Cardiac Diagnostic Technologies, Inc. representation that a settlement has been reached with Plaintiff. Parties Zones and Boston Defendants to provide status of settlement and whether merits of demurrer need to be addressed on a future date.